

Smt. Reena @ Pinkey Rai vs Pradeep Rai on 31 March, 2023

Author: Dwarka Dhish Bansal

Bench: Dwarka Dhish Bansal

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IN THE HIGH COURT OF MADHYA PRADESH
AT JABALPUR
BEFORE
HON'BLE SHRI JUSTICE DWARKA DHISH BANSAL
ON THE 31 st OF MARCH, 2023
MISC. CIVIL CASE No. 2270 of 2022

BETWEEN: -

SMT. REENA @ PINKEY RAI W/O SHRI PRADEEP RAI,
AGED ABOUT 50 YEARS, OCCUPATION: HOUSEWORK
D/O SHRI RAMKUMAR JAISWAL AT PRESENT R/O
NEAR KAMANIYA GATE, GURUNANAK WARD, POLICE
STATION KOTWALI, KATNI, DISTRICT- KATNI M.P.
(MADHYA PRADESH)

(BY SHRI ASHOK JAISWAL - ADVOCATE)

AND

PRADEEP RAI S/O SHRI HEERA SINGH RAI, AGED
ABOUT 57 YEARS, OCCUPATION: BUSINESS,
PERMANENT R/O VILLAGE- KUCHIWADA, TAHSIL-
KEOLARI, DISTRICT- SEONI, TEMPORARY ADDRESS;
PLOT NO.2, GAYATRI GRIH NIRMAN SOCIETY, C.V.
RAMAN WARD, BEHIND HOUSE OF VIJAY CHOUHAN
SEONI, POLICE STATION DOODA, SEONI, DISTRICT-
SEONI M.P. (MADHYA PRADESH)

(NONE)

This application coming on for admission this day, the court
following:

ORDER

This MCC/application under Section 24 of the CPC has been filed for transfer of case no. RCSHM53/2020 from the Family Court Seoni to Family Court Katni.

2. The counsel appearing for the applicant submits that three cases filed by the applicant/wife (i) under Section 125 Cr.P.C; (ii) under Section 9 of the Hindu Marriage Act; and (iii) under Section 12 of the Domestic Violence Act are pending in Family Court, Katni and the respondent has filed a petition for divorce under Section 13(1)(i)(ia) and (ib) of the Hindu Marriage Act, which is pending

in Family Court, Seoni, District Seoni. He further submits that the applicant/wife is unemployed and is residing along with her father, whereas the respondent is doing business and has sufficient income. He also submits that Seoni is about 225 Kms far from Katni and the applicant being lady is not in a position to go and appear before the Court at Seoni. Accordingly, he prays for transfer of the case no. RCSHM53/2020 to the Family Court, Katni.

3. None appears on behalf of the respondent despite service of summons.

4. The record produced by the applicant shows that three cases (i) under Section 125 Cr.P.C; (ii) under Section 9 of the Hindu Marriage Act; and

(iii) under Section 12 of the Domestic Violence Act filed against the respondent- Pradeep Rai are pending in the Family Court, Katni in which the respondent is avoiding service of summons and has not put in appearance so far. Similar is the position here in the MCC, where he has not appeared despite service of summons.

5. It is well settled that in the matrimonial cases, the convenience of wife is required to be considered.

6. As such and in view of pendency of three cases at Family Court, Katni, I am of the considered opinion that the case no. RCSHM53/2020 deserves to be transferred from the Family Court, Seoni to Family Court, Katni and is hereby ordered to be transferred as such.

7. Accordingly, MCC is allowed/disposed off.

8. Interim application(s), if any, shall stand disposed off.

(DWARKA DHISH BANSAL) JUDGE pb